Stormwater Drainage and Rainwater Collection Systems Policy

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POLICY OBJECTIVE

The objective of this policy is to establish the requirements for the management and installation of stormwater drainage and rainwater collection systems.

LEGISLATIVE PROVISIONS

Environmental Planning & Assessment Act 1979
Local Government Act 1993
State Environmental Planning Policy (Biodiversity and Conservation) 2021
State Environmental Planning Policy (Exempt and Complying Development Codes) 2008
State Environmental Planning Policy (Building Sustainability Index: BASIX) 2004

POLICY STATEMENT

Goulburn Mulwaree Council (Council) recognises that water is a limited valuable resource that requires careful management, particularly in areas that do not have access to a reticulated supply. Furthermore, Goulburn historically has a pattern of intermittent rainfall events accompanied by prolonged periods without adequate rainfall. This policy will increase the level of drought resilience for new development as well as provide environmental, and economic benefits to landholders and the community.

This policy does not override the need where required to provide on-site stormwater detention in any assessment of pre and post development flows.

1. Sydney Drinking Water Catchment Area

1.1 Nearly all land the Goulburn Mulwaree Local Government Area is within the Sydney Drinking Water Catchment. This means that any development undertaken must demonstrate that it can achieve a Neutral or Beneficial Effect (NorBE) on water quality as required by the *State Environmental Planning Policy (Biodiversity and Conservation) 2021*. This requirement applies to all Development Applications lodged with Council, Complying Development Certificates issued by Private Certifiers and Development Without Consent as part of the review of environmental factors process.

Consequently, applications made under s.68 of the *Local Government Act 1993* (LG Act) that form part of an application made under the *Environmental Planning and Assessment Act 1979* must demonstrate a Neutral or Beneficial Effect (NorBE) on water quality.

2. Rainwater Tanks for New Development

2.1 All new detached development with a roof area greater than 20m^2 is to be provided with rainwater tanks in accordance with the following:

- All roof areas on the Lot are to be configured to ensure that roof water is collected and conveyed to the onsite rainwater tank(s);
- Overflows from rainwater tanks within the urban area are piped to Council stormwater infrastructure. In some instance a raingarden will be required prior to the final discharge point from the Lot;
- Overflows from rainwater tanks where no stormwater infrastructure exists must be designed to prevent environmental damage through the use of outlet protection in accordance with the Blue Book principles and Council's Standard Engineering drawings;
- The rainwater tank supply is to be configured and plumbed for maximum water reuse and as a minimum to service:
    - i. all toilets;
    - ii. all washing machines;
    - iii. laundry sinks;

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iv. swimming pool and spa top up taps;

v. two external taps as for irrigation of garden areas (front and back); and

vi. all washdown areas for non-residential developments.

- The design and installation must be in accordance with *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*, the *Plumbing & Drainage Act 2011*, AS 3500 Part 1, Water Supply and the National Construction Code;
- A Basix Certificate obtained for the development must contain the above nominations where included in and appropriate for the type of development under the Basix alternative water use guidance table;
- Rainwater tanks in rural areas must be non-combustible; and
- Minimum rainwater tank capacities are exclusive of any minimum bush fire requirement.

2.2 Minimum rainwater tank sizes in areas serviced by reticulated water;

A. Residential developments (per dwelling):

i. Lot size up to 350m^2 = 5,000 litres;

ii. Lot size 351m^2 to 1,999m^2 = 10,000 litres; and

iii. Lot size over 2000m^2 minimum 22,500 litres

B. Ancillary residential development that cannot be connected to the main rainwater tank on the Lot is to be provided with separate rainwater tanks based on:

i. The total actual roof slope area calculation below.

Tank Size = (total roof slope area in sqm / 10) x 1,000 litres; or

ii. Volume based on lot size as per 2.2 A (above).

C. Non-residential developments:

i. Minimum 10,000 litres; and

ii. Any additional volume as determined by the assessing officer following the review of a Water Cycle Management Study undertaken as part of the assessment of a development application.

2.3 Minimum rainwater tank sizes in areas not serviced by reticulated water:

A. Residential per dwelling is to be a minimum 45,000 litres for dwellings with up to two bedrooms, with an additional 20,000 litres per bedroom required thereafter.

B. A room capable of being used as a bedroom is to be regarded as a bedroom for the purposes of this policy.

C. Ancillary residential development that cannot be connected to the rainwater tank for the dwelling is to be provided with separate rainwater tanks based on the total actual roof slope area calculation above (refer 2.2 B).

D. Non-residential development (including farm buildings containing sanitary fixtures) require a minimum rainwater tank size to be calculated using the total roof slope area calculation method (refer 2.2 B).

E. Farm buildings that do not contain sanitary fixtures require a minimum 10,000 litre rainwater tank.

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3. On-Site Stormwater Disposal

3.1 Council recognises that in limited instance within the urban area it may be appropriate for stormwater disposal to occur on site via properly constructed infiltration trenches where stormwater cannot discharge to Council stormwater infrastructure. On-site stormwater disposal is only permitted for a single dwelling and associated ancillary development. On-site stormwater disposal is not permitted for dual-occupancy, multi-dwelling, manor homes or any other form of development that approves more than one dwelling.

3.2 The use of an infiltration trench in the urban area is subject to the following design parameters;

F. Sized at 1m^2 on the top surface per 10m^2 of impervious area draining to it (including roof area draining to the rainwater tank);

G. Be 600mm deep, level on bottom and top, include domes, and a bed of distribution aggregate and perforated pipes;

H. The long axis of the trench shall be placed across the fall of the land;

I. The trench shall not be placed within the clearance zone of any sewer main or within any other onsite easements; and

J. Be located:

i. Outside any overland flow path;

ii. 6m from any downslope boundary or structure,

iii. 3m from any upslope boundary or structure;

iv. 2m from any side boundary or structure.

- If the above design parameters cannot be met, Council may consider a proposal from a suitably qualified and experienced hydraulic engineer.

3.3 If a suitable on-site stormwater system cannot be provided, then a stormwater easement may need to be created over neighbouring land to connect the Lot to appropriate stormwater infrastructure. In such instances documentary evidence from NSW Land Registry Office confirming the creation of an easement must accompany the development application and any application made under s.68 of the LG Act.

4. Charged Stormwater Overflow Drainage Systems

4.1 Council recognises that in limited instance within the urban area it may be appropriate for a charged stormwater overflow drainage systems to discharge stormwater overflow to Council stormwater infrastructure i.e. kerb and gutter.

4.2 The use of charged stormwater overflow drainage systems is subject to the following design parameters:

K. Maximum distance from the final discharge point to tank overflow outlet is 25m; and

L. Minimum difference in height of the rainwater tank overflow outlet and the final discharge point is 1m.

4.3 If the above design parameters cannot be met then a stormwater easement will need to be created over neighbouring land to connect the Lot to appropriate stormwater infrastructure. In such instances documentary evidence from NSW Land Registry Office confirming the creation of an easement must accompany the development application and any application made under s.68 of the LG Act.

5. Raingardens

5.1 Where the proposed development requires the provision of a raingarden the following design parameters are to be met:

M. Be in accordance with Council's Standard Engineering drawings;

N. Have a minimum surface and filter area of 5 square metres;

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O. Be provided with direct discharge and overflow to the inter-allotment drainage system or kerb and gutter;

P. Be protected from vehicular or other damage by fences, posts, slotted kerbs or similar permanent structures; and

Q. Be located:

i. Outside any overland flow path;

ii. Not be contained within any easement;

iii. 1m from any downslope boundary or structure,

iv. 1m from any upslope boundary or structure; and

v. 1m from any other side boundary or structure.

RELATED DOCUMENTS

Australian Standard AS/NZS 3500
NSW Code of Practice for Plumbing & Drainage
Managing Urban Stormwater Soils & Construction 4th Edition (The Blue Book)
National Construction Code

Version	Council Meeting Date	Resolution	Adoption Date	Effective From
1	6 August 2013	13/325	11 October 2013	11 October 2013
2	18 July 2017	2017/314	18 July 2017	18 August 2017
3	19 July 2022	2022/241	19 July 2022	16 August 2022
4	18 March 2025	2025/47	18 March 2025	16 April 2025
All policies can be reviewed or revoked by resolution of Council at anytime.				

DIRECTORATE: Planning & Environment

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